



General Terms and Conditions of the online shop of maxon Switzerland ag

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These General Terms and Conditions govern the contractual relationship between customers (private and Business customers) of the online shop of maxon Switzerland ag (hereinafter referred to as "Customer" for the sake of simplicity) and the

maxon Switzerland ag
Eichstrasse 3
CH-6055 Alpnach
Switzerland

Contact for customers with registered office / residence in Switzerland or Liechtenstein Tel.:

+41 41 662 95 96

Fax: + 41 41 666 16 16

shop.ch@maxongroup.com

Contact for customers with registered office / residence outside Switzerland or Liechtenstein Tel.: +41 41

666 18 00

Fax: + 41 41 666 16 16

e-shop@maxonmotor.com

Commercial Register No. CHE-287.668.922 VAT

No. CHE-287.668.922 VAT

Management: Robin Camenzind

(hereinafter referred to as "maxon").

1. Content of the General Terms and Conditions. These General

Terms and Conditions govern all purchase contracts concluded between the customer and maxon via the online shop. The General Terms and Conditions in the version valid at the time the contract is concluded apply.

The customer is advised to read these General Terms and Conditions before placing an order and to print them out or download and save them as a PDF document.

Any provisions of the customer that conflict with or deviate from these terms and conditions shall not become part of the contract unless maxon expressly agrees to them in writing.

2. User Account If the

customer wishes to conclude purchase agreements with maxon via the online shop, he or she must register and create a "my maxon" user account.

The customer is obligated to provide truthful personal information and to keep the access data confidential and not to disclose it to third parties. If the customer creates a user account for business customers, they confirm that they are authorized to open a "my maxon" user account on behalf of the business customer. maxon reserves the right to delete a user account or block access to the user account at any time and without stating reasons.

The customer is obligated to contact and inform maxon immediately if they have reason to believe that their user account is being or has been misused by third parties. The customer is generally responsible for all orders placed or contracts concluded using their user account. Their liability is exempt if they can prove that they notified maxon immediately and did not violate any duty of care in handling their user account.

maxon saves the order data and sends the user an order overview via email as part of the order confirmation. The customer can also view the order data in the "my maxon" user account.

3. Contracting Parties and Sales Territory maxon

concludes purchase contracts via the online shop with private customers (within the meaning of "consumers") who are legally competent and at least 18 years old, as well as with business customers. By submitting their order, the private customer declares that they are of legal age and authorized to enter into the contract with maxon. Customers placing an order on behalf of a business customer also declare that they are authorized to place orders on behalf of the business customer.

Should maxon, by mistake or due to false information provided by the customer, conclude a contract with a customer who is not legally competent or who is located or resident outside of maxon's sales area, maxon reserves the right to withdraw from the contract.

4. Order volume



The order volume of individual products via the online shop is limited to a maximum of 49 pieces per order item.

If the customer wishes to order 50 or more of individual products, they are asked to contact maxon or the maxon representative in the customer's country of residence. Alternatively, the customer can still place the order via the online shop, whereby only those items with an order quantity of 49 or less will be processed according to these terms and conditions. Orders exceeding 49 items will be accepted by maxon as a quote request from the customer. maxon will subsequently contact the customer regarding the quote request.

If the customer is domiciled or resident outside of Switzerland or Liechtenstein, the quotation request will be forwarded to the maxon representative in the customer's country of domicile or residence, which will then contact the customer.

5. Conclusion of contract

All information about products available in the online shop, such as technical data, illustrations, size information or information on areas of application and specifications, etc., are non-binding and subject to change at any time, unless they are expressly designated as binding.

The offer in the online shop is non-binding. The customer selects the goods to be ordered from the selection and adds them to the shopping cart. The customer has the option of changing the contents of the shopping cart or emptying it completely or partially until the order is submitted. By clicking the "Order with payment" button, the customer orders the goods contained in the shopping cart and thereby submits a binding offer to maxon to conclude a contract. At the same time, the customer accepts these General Terms and Conditions.

maxon will confirm receipt of the order via an automated email. However, this confirmation of receipt does not constitute acceptance of the offer by maxon.

The contract is only concluded upon delivery of an order confirmation, a shipping confirmation or upon delivery of the products.

The customer expressly agrees that the delivery of digital content that is not provided to the customer on a tangible medium may be made by maxon immediately after receipt of the order; in this case, any right of withdrawal pursuant to Section 6 below shall lapse.

6. Right of withdrawal

If the customer is a consumer and is also resident in Switzerland, Liechtenstein or an EU member state, he or she may withdraw from the contract under the following conditions:

Right of withdrawal

You have the right to withdraw from the contract within fourteen days without giving any reason.

The cancellation period shall be fourteen days from the day on which you or a third party other than the carrier designated by you takes possession of the goods or, in the case of a contract for several goods that you have ordered as part of a single order and which are delivered separately, fourteen days from the day on which you or a third party other than the carrier designated by you takes possession of the last goods.

To exercise your right of withdrawal, you must

maxon Switzerland ag
Eichstrasse 3
CH-6055 Alpnach
Switzerland

Contact for customers based / residing in Switzerland or Liechtenstein

Phone: +41 41 662 95 96

Fax: + 41 41 666 16 16

Email: shop.ch@maxongroup.com

Contact for customers with registered office / residence outside Switzerland or Liechtenstein Tel: +41 (41)

666 18 00 Fax: +41 (41) 666

16 16 eMail: e-

shop@maxonmotor.com

by means of a clear statement (e.g., a letter sent by post, fax, or email) of your decision to withdraw from this contract. You may use the attached model withdrawal form, but this is not mandatory.

To comply with the cancellation period, it is sufficient that you send the notification of the exercise of the right of cancellation before the cancellation period has expired.

Consequences of revocation

If you cancel this contract, we will refund all payments we have received from you, including delivery costs (except for additional costs resulting from your choice of a delivery method other than the cheapest standard delivery offered by us), promptly and at the latest within fourteen days from the day on which we received notification of your cancellation of this contract. For this refund, we will use the same



The payment method you used for the original transaction, unless expressly agreed otherwise with you; under no circumstances will you be charged any fees for this refund. We may refuse to refund until we have received the goods back or until you have provided proof that you have returned the goods, whichever is earlier.

You must return or hand over the goods to maxon Switzerland ag, Eichstrasse 3, CH-6055 Alpnach (CH and FL), or to the maxon representative in your country of residence as per the list under "maxon worldwide" or as per the information on the order confirmation (EU member states) promptly and in any event no later than fourteen days from the date on which you notify us that you have cancelled this contract. This deadline is met if you send the goods before the expiry of the fourteen-day period. You will bear the direct cost of returning the goods. You only have to pay for any loss of value of the goods if this loss of value is due to handling of the goods which is not necessary to check their quality, properties and functioning.

7. Exceptions to the right of withdrawal The

right of withdrawal does not apply to the following contracts:

- Contracts for the supply of goods which are not prefabricated and for whose production an individual selection or determination by the consumer is decisive or which are clearly tailored to the personal needs of the consumer.
- Contracts for the supply of sound or video recordings or computer software in a sealed package, if the seal has been removed after delivery.

8. Delivery times and delivery The

availability of the product is shown in the online shop - if information is available. Products that are described as available in the online shop and are not configured or combined with other components will be shipped by maxon - subject to acceptance of the order by maxon - within 24 hours of receipt of the order or, in the case of advance payments, within 24 hours of receipt of payment. For all other products, the customer will be informed of the delivery times within 48 hours or may take up to 11 working days after receipt of the order. The delivery time also depends on the country of destination and the duration of any customs clearance. maxon assumes no liability for delivery delays that are the responsibility of the customer or our logistics partners or are caused by cases of force majeure. If delivery is delayed by more than 30 days after conclusion of the contract, the customer is entitled to withdraw from the contract. The customer may notify maxon of the contract withdrawal by letter, fax, or email to customer service (see Section 12 below). maxon reserves the right to withdraw from the contract in the event of the ordered goods becoming unavailable after order confirmation. In this case, the customer will be notified immediately of the unavailability of the ordered goods. Any service already provided by the customer at this time will be refunded immediately.

If the customer defaults on acceptance or violates other obligations to cooperate, maxon shall be entitled to invoice the customer for any resulting damages, including any additional expenses.

The customer must inspect the delivered products for transport damage and obvious defects upon delivery and document them. Additionally, upon receipt of the delivery, the customer must check whether the delivery is complete and corresponds to the ordered products. Any discrepancies, transport damage, and obvious defects must be reported to maxon immediately, but no later than 7 days after delivery, in writing (by email, fax, or letter) to customer service (see Section 12 below).

The violation of the above notification obligation has no influence on any legally mandatory warranty claims of consumers.

9. Prices and shipping costs The

price is determined according to the time of the order.

The prices listed in the online shop (item overview and item details) are exclusive of VAT and exclusive of delivery and shipping costs. Before completing the order process, the customer receives an order overview showing the final price of the order including delivery and shipping costs, as well as – depending on the customer's place of residence or domicile – VAT and any applicable import duties. Delivery and shipping costs, as well as taxes, customs duties, and other fees and charges, are determined by the delivery method and delivery address.

For deliveries abroad (outside Switzerland), the invoice may be issued without VAT and without consideration of any customs duties and other charges, which the customer will be informed of during the ordering process. These taxes, customs duties, and other fees and charges must be paid by the customer in accordance with the legal provisions applicable at their place of residence and directly to the relevant office or authority at their place of residence.

Business customers based in the EU (excluding Germany) have the option of tax-free intra-community delivery if they provide their VAT identification number during the ordering process.

If the cancellation pursuant to clause 6 for deliveries abroad (outside Switzerland) results in taxes or duties associated with the cross-border return of the goods, for which maxon is required to pay and which cannot be reimbursed otherwise, maxon may claim these from the customer or deduct them from the purchase price to be refunded.

10. Payment

Orders in the online shop can be paid by credit card, Postfinance, PayPal, or prepayment. Customers who have this option available and who have activated it in their user account also have the option of paying by invoice. maxon reserves the right to only ship to such customers upon payment by credit card, Postfinance, PayPal, or prepayment.



Invoices are due within 30 days of the invoice date. After this period, the customer automatically defaults on payment without further notice.

Credit card and PostFinance payments are processed by Datatrans AG, Stadelhoferstrasse 33, 8001 Zurich (www.datatrans.ch). The credit card information provided by the customer during the ordering process is transmitted to Datatrans AG via an encrypted connection (SSL).

The account information for advance payments can be found in the order confirmation. Once payment is received by maxon, the goods will be delivered within the delivery periods specified in Section 8 above.

11. Retention of title Until all claims against the customer have been settled in full, the delivered goods remain the property of maxon.

12. Customer Service

For all questions relating to our offer and our online shop, maxon is available to the customer at the following address:

maxon Switzerland ag
Customer service
Eichstrasse 3
CH-6055 Alpnach
Switzerland

Contact for customers with registered office / residence in Switzerland or Liechtenstein Tel.: +41
41 662 95 96 Fax: + 41 41
666 16 16
shop.ch@maxongroup.com

Contact for customers with registered office / residence outside Switzerland or Liechtenstein Tel.: +41 41 666
18 00 Fax: + 41 41 666 16 16
e-shop@maxonmotor.com

Alternatively, the Customer may contact maxon's representative in the Customer's country of residence in accordance with Section 13 below.

13. Warranty maxon

provides the statutory warranty for all newly manufactured products against material and legal defects for a period of two years from the date of delivery. This does not apply to the cases of improper use listed below, nor to defects resulting from non-compliance with the provisions of the standard specifications for maxon products No. 100 to No. 103. The standard specifications are an integral part of these terms and conditions. Within the scope of the warranty, the customer is entitled to the following alternative rights:

a) Remedy of defects or replacement, b) Reduction of the purchase price c) Withdrawal from the contract

maxon reserves the right to choose between remedying the defect and delivering a new product. A reduction in the purchase price and withdrawal from the contract can only be declared after an unsuccessful request for remedy of the defect, including a reminder. Claims for damages in lieu of delivery are excluded. Warranty claims must be asserted by means of a declaration to maxon. The customer must submit all warranty claims to the maxon representative in the customer's country of residence, as listed under "maxon worldwide" or in accordance with the information on the order confirmation.

maxon assumes no liability for defects resulting from improper use (in particular: use of force; incorrect wiring; use outside the specifications, especially standard specifications No. 100 to No. 103; electrical or mechanical overload, etc.) or from natural wear and tear, unless the customer can prove that the defect occurred due to incorrect usage instructions. Warranty claims are excluded if repairs or other interventions were not performed by maxon or its authorized personnel.

14. Liability

maxon is liable to private customers within the framework of the statutory provisions.

Liability for slight negligence is excluded. Liability is limited to the amount of damage typically foreseeable at the time the contract is concluded. In the event of a breach of material contractual obligations, maxon shall be liable for any culpable conduct of its legal representatives, employees, and third parties whose fault can be attributed to maxon. There is no liability for damages not caused by the purchased item. Liability for compensation for indirect damages, in particular lost profits, only exists in cases of intent or gross negligence on the part of maxon, its legal representatives, employees, and third parties whose fault can be attributed to maxon.

These exclusions and limitations of liability do not apply in the case of express assurances of characteristics, fraudulent concealment of a defect, or the assumption of guarantees by maxon. Furthermore, they do not apply to damages resulting from injury to life, body, or health, or in the case of mandatory statutory provisions, in particular product liability. 15. **Intellectual Property**



The use of the PDF and DXF files and other information provided in the online shop is generally permitted for development and planning purposes regarding the integration of maxon products. Any copyright notices, logos, etc. must be retained in all cases. Any other use is prohibited and requires the prior written consent of maxon. Any further intellectual property rights of third parties remain reserved.

Should the user acquire any intellectual property rights through the use of the website, the user shall immediately and irrevocably and free of charge assign to maxon all such rights to the extent permitted by law or – if assignment is not permitted – immediately grant maxon an irrevocable, free and exclusive right of use and completely and definitively waive the exercise of these intellectual property rights.

With regard to the software products provided with the purchased items, the end user license terms of these software products apply in addition. By installing or using the software products, the customer expressly acknowledges their validity.

16. Special provisions for business customers The warranty period for business customers is 12 months.

Maxon is only liable to business customers in the event of a breach of essential contractual obligations (cardinal obligations). Liability for slight negligence and the breach of non-essential obligations is excluded.

The shortening of the warranty period as well as the exclusion of warranty and liability do not apply to the assumption of a guarantee, the assurance or the fraudulent concealment of defects and to damages resulting from injury to life, body or health as well as in the case of mandatory statutory provisions.

17. Export Controls The

Parties undertake to comply with all applicable sanctions, embargoes, and export control regulations (hereinafter collectively referred to as "Export Control Laws"). These include all applicable standards (including future amendments) that sanction, prohibit, or restrict certain activities, including, but not limited to:

(i) the sale, import, export, re-export, making available, transfer or handling of goods, services, Technology (including know-how) or software (hereinafter collectively referred to as "goods");

(ii) financing or investing in direct or indirect transactions or business with certain countries, territories, regions, governments, projects or specifically designated individuals or organizations; and

(iii) any other standards adopted, maintained or enforced by a sanctioning authority before or after the conclusion of the contract.

Each Party represents and warrants that, to the best of its knowledge and belief, at the time of entering into this Agreement, neither it nor any person acting on its behalf is subject to Sanctions. Each Party shall promptly notify the other Party if it becomes a Sanctioned Person. "Sanctioned Person" means any natural or legal person included on a list adopted pursuant to applicable export control laws (including EU and US lists), whose assets are frozen, or who is subject to other restrictions. A Sanctioned Person also includes any legal entity directly or indirectly controlled by a Sanctioned Person.

maxon reserves the right to delegate (extensive) end-user and, if applicable, related shareholder and participation verification (KYC) checks of all parties/persons involved in the transaction chain to the customer. The customer undertakes to conduct such checks as required and to provide maxon with the results of the delegated KYC checks within two weeks at the latest.

The contracting parties undertake to obtain all necessary official permits for the import/export/re-export or transfer of goods. Goods may not be exported, re-exported, or transferred (domestically) without obtaining the necessary valid permits from the relevant authorities. Upon maxon's request, the customer must provide maxon with an end-use declaration in the form required by maxon or the relevant authorities. maxon reserves the right to make the delivery of goods dependent on receipt of the relevant documents.

The Customer warrants that it will not transfer the goods received from maxon, directly or indirectly, to (i) Sanctioned Persons or (ii) Parties to the Agreement for use or end-use in sanctioned countries, territories, regions, governments, or projects. The customer's obligation also includes not supplying or using goods for any application related to anti-personnel mines, cluster munitions, nuclear, biological, and chemical weapons, and delivery systems for transporting such weapons.

If the Customer's rights and obligations under the contract are transferred to third parties, the Customer shall ensure that these third parties also comply with the obligations under Section 17 and pass them on to other business parties. To this end, the Customer must establish and maintain an appropriate monitoring mechanism to prevent any conduct by third parties in the further distribution chain, including potential resellers, that violates the purpose of Section 17.

In the event of a breach of any provision of Clause 17 by the Customer or a third party, the Customer shall immediately notify maxon in writing. Upon request, the Customer shall provide maxon with information on compliance with the obligation under Clause 17 within two weeks. A breach of any provision of Clause 17 by the Customer shall be deemed a material breach of contract and shall entitle maxon, in particular, to withdraw from the contract, including all delivery obligations, with immediate effect. Such withdrawal shall not affect any other rights and claims of maxon.



This clause excludes any liability of maxon for claims, losses, or damages of the customer, regardless of their nature and legal basis. In the event of a breach of any provision of Section 17, the customer further undertakes to compensate maxon and its group companies for all damages and to fully indemnify maxon and its group companies upon first request. maxon will report violations to the relevant authorities within the framework of applicable export control laws.

If maxon has legitimate doubts regarding compliance with the provisions of Section 17, it may refuse , maxon can then deliver to the customer delivery until such doubts have been resolved to maxon's satisfaction. Customer claims for delay or non-performance based on such doubts are excluded to the extent permitted by law, even after they have been resolved.

maxon may inspect the whereabouts of the delivered goods at any time and request the necessary documentation from the customer. maxon is entitled to conduct on-site inspections at the customer's premises or to commission third parties to conduct them. If the customer refuses to provide the information or to conduct the on-site inspection without providing a comprehensible reason, maxon may terminate the contract in whole or in part without liability, and the customer must reimburse maxon for any costs incurred up to that point.

If maxon is prevented from timely delivery due to official application or approval procedures (including all possible legal remedies), the delivery period shall be extended appropriately by the duration of the delay. The delay shall not place maxon in default.

maxon may suspend performance of the contract without any liability or terminate the contract in whole or in part if export control laws subsequently require it, if an authorization is missing or if performance becomes illegal or impracticable for maxon or maxon group companies or, in maxon's sole discretion, could damage the reputation of maxon or maxon group companies.

18. Applicable law and place of jurisdiction These

General Terms and Conditions and the contracts concluded on the basis of these General Terms and Conditions are subject to Swiss law, excluding conflict of law rules referring to foreign law of Swiss International Private Law (IPRG) or international treaties.

The place of jurisdiction is the customer's place of residence in Switzerland. If the customer is not a consumer and/or does not have a registered office or residence in Switzerland, the place of jurisdiction shall be the registered office of maxon.

This is subject to any national legal provisions at the customer's place of residence that deviate from the above and which are mandatorily applicable to consumers or consumer contracts and thus to the customer as a consumer.

19. Final Provisions Should

individual provisions of these General Terms and Conditions be legally invalid in whole or in part, or should they subsequently lose their legal validity, or should gaps exist, this shall not affect the validity of the remaining provisions and the General Terms and Conditions. In such a case, the invalid or missing provisions shall be replaced or supplemented by provisions that most closely approximate the original economic and legal purpose of these General Terms and Conditions.

maxon reserves the right to make changes to these General Terms and Conditions at any time. The amended General Terms and Conditions will be made available in the online shop. The General Terms and Conditions of maxon in effect at the time of the contract conclusion shall prevail.

© January 1st, 2025, maxon Switzerland ag, Alpnach

Sample cancellation form

If you wish to cancel the contract, please fill out this form and return it to: maxon Switzerland ag, Eichstrasse 3, CH-6055 Alpnach (CH and FL), or to the maxon representative in your country of residence according to the list under "maxon worldwide" or according to the information on the order confirmation (EU member states).

I/we (*) hereby revoke the contract concluded by me/us (*) for the purchase of the following goods (*)/the provision of the following service (*)

- Ordered on [*/]received on [*/]

- Name of the consumer(s)

- Address of the consumer(s)

- Signature of the consumer(s) (only if notification is made on paper)

- Date

(*) Delete as appropriate.